

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
August 21, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

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TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
9:00 AM Line 1 25-CIV-02066	SEAN MCCULLOUGH VS. ARVAND SABETIAN, ET AL
SEAN MCCULLOUGH ARVAND SABETIAN	THOMAS W.J. PURTELL ARIEL M. GOZZIP

Defendants' Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendants Watgate Sales, Inc. dba Woodlake Anchor, and Clement Joseph Stein III's Demurrer to Plaintiff Sean McCullough's First Amended Complaint ("FAC") filed November 24, 2025, is SUSTAINED in part and OVERRULED in part.

In reaching its decision the Court considered all the submitted and relevant pleadings, including the Complaint, the Notice of Demurrer and Demurrer with Memorandum of Points and Authorities ("MPA"), Opposition brief, Reply, and any declarations as submitted.

Background

Plaintiff Sean McCullough was a residential tenant at 1726 Sequoia Ave., Unit 7, Burlingame, CA 94010 from May 1, 2024, until February 18, 2025. (Compl. ¶ 13, and FAC ¶ 13 .) The Complaint alleges that Defendant Kam Ho Lau, Ziprent; Arvand Sabetian, Woodlake Anchor, and Clement Joseph Stein III owned managed, maintained, and controlled the apartment unit. (Compl. ¶ 14 and FAC ¶ 14.) Plaintiff claims to have taken possession of the subject property pursuant to a lease contract, which should have been attached to the FAC as Exhibit A (FAC, pg. 3, lines 24-25), but the FAC as filed inexplicably has no such exhibit attached.

Plaintiff alleges he was constructively evicted because the apartment contained numerous substandard and dangerous conditions, including unpermitted electrical and plumbing work, severe leaks, and violations of local building and housing codes. Plaintiff alleges that these conditions rendered the unit unsafe and unlawful for habitation and that Defendants knowingly allowed the property to remain in this condition. Plaintiff asserts that these issues caused him physical harm, emotional distress, and a loss of use of the property, ultimately resulting in his constructive eviction on February 18, 2025. (Compl. ¶¶ 13, 16-17 and FAC ¶¶ 13, 16-17.) Plaintiff's FAC still alleges the same following causes of action: (1) Negligence; (2) Breach of the Implied Warranty of Habitability; (3) Breach of the Implied Warranty of Quiet Enjoyment; (4) Intentional Infliction of Emotional Distress; (5) Breach of Contract; (6) Breach of the Covenant of Good Faith and Fair Dealing; and (7) Private Nuisance.

Moving defendants generally demur to the FAC on the grounds that the third, fourth, fifth, sixth

and seventh causes of action fail to state facts sufficient to constitute a cause of action against them pursuant to Code of Civil Procedure section 430.10 subdivision (e). (See *McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77 [discussing meaning of the term “general demur”].) These are the same grounds on which defendants had demurred to the original Complaint, as the Complaint was only very minimally altered in the FAC.

Plaintiff opposes, contending that the FAC is proper on the basis that the Court already ruled on the prior Demurrer to the original Complaint’s seventh cause of action for Private Nuisance, and that the balance of the FAC is properly pled though little substantive or meritorious argument was made.

Meet and Confer

A party filing a demurrer “shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) Though failure to sufficiently meet and confer is not ground to overrule or sustain a demurrer (Code Civ. Proc., § 430.41(a)(4)) counsel are reminded that adherence to these professional courtesies and standards greatly assist the goals of the litigation process and system to address those issues which cannot be resolved informally upon their merits. Here, the Court notes the parties did not meet and confer as required because Plaintiff’s counsel was again unresponsive to defense counsel’s efforts to arrange their meeting. (Declaration of Katharine Burlington, Esq. ¶¶4-5.)

Legal Standard

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.10 (e), 430.30, 430.70.) A demurrer for sufficiency tests whether the complaint states a cause of action. (Code Civ. Proc., § 430.10 (e); (*Hahn v. Mirda*, (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty, Code of Civil Procedure section 430.10, subdivision (f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, a demurrer for uncertainty is strictly construed because “ambiguities can be clarified under modern discovery procedures.” (*Ibid.* [internal citation omitted].)

When considering demurrers, courts give the complaint a reasonable interpretation, reading it as a whole and the parts in their context, in the light most favorable to the plaintiff and liberally construed with a view to attaining substantial justice among parties. (*Villafana v. County of San Diego* (2020) 57 Cal.App.5th 1012, 1016-1017 [citations omitted].) The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) In reviewing the complaint on demurrer, therefore, the trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a

cause of action under any legal theory.” (*Das v. Bank of America, N.A.* (2010) 186 Cal.App.4th 727, 734.) When a plaintiff “has stated a cause of action under any possible legal theory” it is error to sustain a demurrer. (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200.)

Third Cause of Action – Breach of Implied Warranty of Quiet Enjoyment

It has long been the rule that in the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment.... In recent years, the covenant of quiet enjoyment has been expanded, and in this state, for example, it insulates the tenant against any act or omission on the part of the landlord, or anyone claiming under him, which interferes with a tenant's right to use and enjoy the premises for the purposes contemplated by the tenancy. [Citations.]

(*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 291–292.)

Here, the FAC adequately alleges the interruption of Plaintiff’s quiet enjoyment of his apartment unit. To wit, working plumbing and sewage, electrical components in compliance with state law which amounted to violations of city building code for which defendants received notices. Plaintiff also alleges there were severe leaks. (FAC ¶¶ 16-17.) However, the FAC once again does not adequately discuss or allege how the moving defendants are responsible. It is still unclear which of the moving defendants are parties to the lease agreement. It is also unclear what are each of the moving defendants’ relationship to or responsibility to the subject property. Plaintiff needs to identify a specific defendant(s) and then state what said defendant(s) actually did to Plaintiff or his apartment unit.

There are only conclusory and generic allegations that “Plaintiff took possession of a unit pursuant to a contract with Defendants (hereinafter “Contract”)...” (FAC ¶ 15) and that “Defendants KAM HO LAU; and DOES 1 to 10;... ZIPRENT; ARVAND SABETIAN, an individual; WOODLAKE ANCHOR; CLEMENT JOSEPH STEIN III, an individual; and DOES 1 to 10 managed, maintained, and controlled the Subject Property.” (FAC ¶14.) Defendant’s repeated argument that the “complaint lumps together multiple allegations against multiple defendants” is a point that is again well taken. Defendant’s MPA, pg. 5, lines 5-11.

Although relevant to the Fifth Cause of Action – Breach of Contract discussed below, the Court also addresses the following deficiency here. It is established and axiomatic that the terms of a contract may be plead by setting forth its specific terms, or by attaching a copy of the contract and incorporating it by reference. *See, Santa Rosa Bank v. Paxton* (1906) 149 Cal. 195, 198-199; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489 (citations to *Witkin* omitted); *Heritage Pacific Financial LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993. Relatedly, a contract must be identified as either being written, oral, or implied by conduct and if not so stated, is subject to demur. CCP § 430.10(g). Merely claiming a “contract” exists without more, is wholly insufficient.

This point was specifically addressed on the Demurrer to the original Complaint. Plaintiffs apparently attempted to cure this defect, by claiming to attach a copy of the Contract. FAC, pg. 3, lines 24-25. However, the *filed* FAC does not have an Exhibit A, and does not have any agreement attached.

This claim fails to state sufficient facts, and accordingly, the demurrer is SUSTAINED with leave to amend.

Fourth Cause of Action – Intentional Infliction of Emotional Distress (IIED)

The elements of a cause of action for IIED are “(1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.)” (*Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1273, as modified on denial of reh'g (May 15, 2023), review denied (Aug. 9, 2023).) “It must be conduct *directed at the plaintiff*, or occur in the presence of the plaintiff *of whom the defendant is aware.*” [Citation.]” (*Potter*, 6 Cal.4th at 1002, emphasis original.) Here, for the reasons stated above, it is still not clear the conduct was directed by the instant defendants, what their involvement is on the subject property, or whether or not they are even parties to the lease agreement.

All Plaintiff has done is allege substandard housing conditions, largely in a conclusory fashion and without factual detail. The FAC fails to allege, and Plaintiff's Opposition does not even argue for, any extreme or outrageous conduct, any specific intent or recklessness, nor any non-conclusory facts showing the alleged severity of the claimed emotional distress. Instead, Plaintiff's opposition merely quotes conclusions from the FAC, and argues it mirrors the pleading requirements of CACI 1600. Opposition, pg. 8, lines 14-17. Therein lies part of the problem, as CACI 1600 outlines bare pleadings and legal theory, not the facts needed to be placed in an operative complaint to withstand a demurrer.

Plaintiff was a residential tenant at the subject premises from May 1, 2024, until February 18, 2025. (Compl. ¶ 13, and FAC ¶ 13 .) Thus all facts that would have provided support to a cause of action for IIED would be within Plaintiff's personal knowledge since that timeframe, and we are now approximately a year and half after the tenancy ended. If there was specific extreme and outrageous conduct, plaintiff should have alleged it. If there were facts to demonstrate the severity of the alleged emotional distress, again plaintiff should have alleged it. Despite having been granted the opportunity to amend, plaintiff has not done so, which is demonstrative that such facts do not exist.

It is not an abuse of discretion to sustain a demurrer without leave to amend, if plaintiff is unable to show there is a reasonable possibility that the defect can be cured by amendment. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. “The plaintiff bears the burden of demonstrating a reasonable possibility to cure any defect by amendment.” *Lazar v. Hertz Corp.* (1999) 69 Cal.App.4th 1494, 1501. Plaintiff's Opposition fails to even argue, at all, that it can somehow cure the same defects that existed in the Complaint and which were repeated in the FAC. Any

reasonable articulation of how it can cure is utterly missing. Instead, the entire Opposition is grounded in argument that the bare legal conclusions of the FAC are sufficient, which again supports a finding that Plaintiff has no actual facts to state in cure. On this cause of action, the Court finds that “amendment would be futile.” (*Nelson v. Tucker Ellis, LLP* (2020) 48 Cal.App.5th 827, 848 [internal citations and quotations removed].)

Accordingly, the demurrer is SUSTAINED without leave to amend.

Fifth Cause of Action – Breach of Contract

“ ‘A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach[,] and damage to plaintiff resulting therefrom.’ ” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1031.) “ ‘A lease is both a contract and a conveyance; under such an agreement there are rights and obligations based upon the relationship of landlord and tenant as well as upon the contractual promises.’ ” (*Ibid.*) “In every lease the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises.... [T]he landlord is bound to refrain from action which interrupts the tenant's beneficial enjoyment.” (*Guntert v. City of Stockton* (1976) 55 Cal.App.3d 131, 138.) “It should be unnecessary to observe that a breach of contract is actionable without requiring the plaintiff to establish bad faith or malice.” (*Id.* at p. 141, 126 Cal.Rptr. 690.) (*Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 655–656.)

As noted on the prior demurrer to the complaint, it is established and axiomatic that the terms of a contract may be plead by setting forth its specific terms, or by attaching a copy of the contract and incorporating it by reference. See, *Santa Rosa Bank v. Paxton* (1906) 149 Cal. 195, 198-199; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489 (citations to *Witken* omitted); *Heritage Pacific Financial LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993. Relatedly, a contract must be identified as either being written, oral, or implied by conduct and if not so stated, is subject to demur. CCP § 430.10(g). Merely claiming a “contract” exists without more, is wholly insufficient.

It appears that Plaintiffs *attempted* to cure this defect by claiming to attach a copy of the contract. FAC, pg. 3, lines 24-25. However, the *filed* FAC does not have an Exhibit A, i.e. there is no agreement attached. In light of this attempt, there would appear to be a possibility that plaintiff can cure this still glaring defect, and plaintiff will be given one final opportunity.

The Court also notes that the allegations for this cause of action, are exactly the same as between the complaint and the FAC. See, Complaint ¶¶ 35-39 and FAC ¶¶ 41-45. Plaintiff would be well advised to not only address the utter omission of attaching the actual agreement, but to also address the substance of Defendant's Demurrer. This need is readily highlighted by the fact that Plaintiff's counsel has again failed to meet and confer before this demurrer was filed.

Accordingly, the demurrer is SUSTAINED with leave to amend.

Sixth Cause of Action – Breach of Covenant of Good Faith and Fair Dealing

“A cause of action for tortious breach of the covenant of good faith and fair dealing requires the existence and breach of an enforceable contract as well as an independent tort. (See *Kruse v. Bank of America* (1988) 202 Cal.App.3d 38, 57, 248 Cal.Rptr. 217 [“The inherent precondition to such a tort claim is the existence and breach of an enforceable contract.”].)” (*Innovative Business Partnerships, Inc. v. Inland Counties Regional Center, Inc.* (2011) 194 Cal.App.4th 623, 631–632.)

The demurrer is again SUSTAINED with leave to amend, because the entirety of the contract is still improperly plead as noted above.

Seventh Cause of Action – Private Nuisance

In an action for private nuisance, plaintiff must prove an interference with its use and enjoyment of its property. Second, the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage. Third, the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 938; *in accord, Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1176.

Just as the Court already found in relation to the complaint, the Court again finds the FAC adequately alleges Plaintiff's use and enjoyment was substantially interfered with to the point he evacuated the premises because of the interruptions to his use. (FAC ¶¶ 16-17.) Reasonable people would generally consider lacking adequate plumbing, sewage and electricity unreasonable. (*Today's IV, Inc., supra*, at 1176.). The allegations are sufficient for the cause of action to withstand demurrer, though insufficient to support the claim for punitive damages (see Motion to Strike below). Plaintiff's argument that this second attempt to demurrer on this cause of action is in bad faith, appears valid. It was overruled for the Complaint, and is still overruled for the FAC.

Accordingly, the demurrer is OVERRULED.

Leave to Amend

“[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) Accordingly, LEAVE TO AMEND is GRANTED only on the current Third, Fifth and Sixth Causes of Action.

Any amended complaint must be filed within fourteen (14) days of entry of this Court's Order and shall be in accordance with this ruling. Since the ruling on the demurrer to the original complaint was by and large not adhered to by Plaintiff's counsel, this ruling will attempt to be more explicit:

- In ¶ 9 of the FAC, Plaintiff added “NOTE Defendants WOODLAKE ANCHOR; CLEMENT JOSEPH STEIN III, an individual, ARE NOT included in the definition of “Defendants.” This addition only created ambiguity, but it is up to Plaintiff’s counsel to leave it in or omit it.
- The cause of action for Intentional Infliction of Emotional Distress (currently the 4th Cause in FAC) shall be dropped from any amended complaint due to the above ruling.
- This will then leave only six (6) causes of action in any amended complaint *renumbered* as (1) Negligence, (2) Breach of the Implied Warranty of Habitability, (3) Breach of the Implied Warrant of Quiet Enjoyment, (4) Breach of Contract, (5) Breach of the Covenant of Good Faith and Fair Dealing, and (6) Private Nuisance.
- Each of the causes of action in any amended complaint, shall clearly identify the actual name of the specific party or parties against whom each cause of action is directed.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

25-CIV-02066 SEAN MCCULLOUGH VS. ARVAND SABETIAN, ET AL

SEAN MCCULLOUGH
ARVAND SABETIAN

THOMAS W.J. PURTELL
ARIEL M. GOZZIP

Defendants' Motion to Strike Portions of Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendants Lau, Ziprent, Sabetian, and Stein's Motion to Strike portions of Plaintiff Sean McCullough's First Amended Complaint ("FAC") is GRANTED.

In reaching its decision the Court considered all the submitted and relevant pleadings including the Complaint, the Notice of Motion and Motion to Strike, Memorandum or Points and Authorities ("MPA"), Opposition brief, Reply and the declarations submitted by each party.

Defendants move for an order striking the following portions of Plaintiff's FAC for punitive damages:

- The prayer for attorneys' fees against movants on page 11, lines 10-11.
- The prayer for attorneys' fees against movants on page 13, line 4-5.
- The prayer for attorneys' fees against movants on page 15, line 7-8.
- The prayer for punitive damages against movants on page 15, lines 21-22.
- The prayer for punitive damages against movants on page 16, line 12-13.

(Notice of Motion to Strike, p.2.)

Plaintiff opposes, primarily on the basis that the Court already denied Defendant's motion to strike as alleged in Plaintiff's original Complaint.

Meet and Confer

A party filing a motion to strike "shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc., § 435.5.) Counsel are reminded that adherence to professional courtesies and standards greatly assist the goals of the litigation process and system to address issues which cannot be resolved informally upon their merits. Here, the Court notes the parties did not meet and confer as required because Plaintiff's counsel was again unresponsive to defense counsel's efforts to arrange their meeting. (Declaration of Katharine

Burlington, Esq. iSo Demurrer ¶¶4-5.)

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) A court may, upon motion or in its discretion, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading” and “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436, subds. (a)-(b).) An “irrelevant matter” is an allegation that “is not essential to the statement of a claim or defense,” “is neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431.10, subds. (b)-(c).)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721, 34 Cal.Rptr.2d 898, 882 P.2d 894.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) “ ‘Malice’ ” is defined in the statute as conduct “intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1); *College Hospital, supra*, 8 Cal.4th at p. 725, 34 Cal.Rptr.2d 898, 882 P.2d 894.) “ ‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civ. Code, § 3294 subd. (c)(2).) (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

Due to the ruling on the Demurrer to the FAC on this same day, the requests below are essentially moot and for uniformity, the Court GRANTS the motion on:

- The prayer for attorneys’ fees against movants on page 11, lines 10-11.
- The prayer for attorneys’ fees against movants on page 13, line 4-5.
- The prayer for punitive damages against movants on page 15, lines 21-22.

On October 24, 2025 on the Motion to Strike portions of the Complaint, this Court held:

Upon review of the Complaint, the Court finds Plaintiff has alleged sufficient facts demonstrating the necessary level of oppression, fraud or malice to support a request for punitive damages.

The Court now revisits that ruling as it appears to have been somewhat in error. Note, that ruling does not need to be reversed since it was mooted by the filing of the FAC.

The Court of Appeal explains that “[i]n order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.”

(*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) When considering whether the ruling on such a motion is correct, the court should “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Ibid.*)

A plaintiff may recover punitive damages for a defendant’s “oppression, fraud or malice” if shown by “clear and convincing” evidence. (Civ. Code, § 3294, subd. (a).) Allegations that are “mere speculation” will not establish malice. (*Henderson v. Sec. Nat. Bank* (1977) 72 Cal.App.3d 764, 771.)

The FAC’s Seventh Cause of Action for Private Nuisance that remains at issue, does not provide any ultimate facts to support a claim for punitive damages. However, it incorporates prior allegations. FAC, ¶ 52. The only potentially factually sufficient allegations are then in Paragraphs 16, 17 and 18.

Paragraph 16 of the FAC, alleges that “[s]ubstantial defective conditions existed at the Subject Property during Plaintiff’s tenancy” however, just concluding that there were existing or preexisting conditions does not demonstrate any actual despicable conduct, nor any conscious disregard of Plaintiff’s rights. Problematic is that this paragraph also does not delineate which of the Defendants it applies to.

Paragraph 17 of the FAC, then generally refers to Defendants negligently exposing “Plaintiff to unsafe, illegal, uninhabitable and dangers conditions” without any factual detail. Alleging a failure to provide working plumbing, but there are no facts on what was wrong with the plumbing. There is likewise a reference to a failure to repair “severe leaks” which leaks are not identified. The allegations then in a similar and repeated fashion, refers to “electrical components,” “sewage” and “appliances” that did not conform with applicable law without identifying anything that actually failed nor identifying the laws allegedly broken. There is a reference to hiring “unlicensed contractors” but no actual substandard work is identified. Finally, the section ends with a conclusion, that “Defendants permitted the Subject Property to deteriorate into a dilapidated, substandard uninhabitable state” which is argument, not factual. Again problematic is that this paragraph also does not delineate which of the Defendants it applies to.

Paragraph 18 of the FAC, then essentially repeats the conclusory allegations of Paragraph 17, but finally attempts to allocate them to (apparently) only Defendants Woodlake Anchor and Clement Joseph Stein III. This is only helpful to ascertain that these allegations, only pertain to these two defendants, but the underlying allegations have the same problems as Paragraph 17.

Accordingly, Defendants’ Motion to Strike is GRANTED on:

- The prayer for attorneys’ fees against movants on page 15, line 7-8.
- The prayer for punitive damages against movants on page 16, line 12-13.

The Court notes that leave to amend the FAC was granted on the above Demurrer. If Plaintiff intends to allege the necessary factual detail to support a claim for punitive damages on the Private Nuisance cause of action, then Plaintiff is granted leave to amend for that purpose.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND IN HER
OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant County of San Mateo and Defendant Matthew Fox's Demurrer to Plaintiffs' Complaint

TENTATIVE RULING:

For the reasons stated below, Defendants County of San Mateo's and Matthew Fox's demurrer, filed Jan. 28, 2026, which is directed to Plaintiffs Tapia et. al.'s original Complaint, filed June 13, 2025, is HEREBY TAKEN OFF CALENDAR AS MOOT. The Court finds that on Aug. 3, 2026, Plaintiffs timely attempted to file a First Amended Complaint ("FAC") against Defendants County of San Mateo and Matthew Fox, which should have been accepted for filing, and which would have rendered this demurrer moot.

Background.

On June 13, 2025, Plaintiffs filed their original Complaint. On Jan. 28, 2026, Defendants County of San Mateo and Matthew Fox filed a joint demurrer to the Complaint. The hearing date for the demurrer was initially set for Aug. 14, 2026, and rescheduled for Aug. 21, 2026. On May 22, 2026, defendant Corpus filed an Answer to the Complaint. On Aug. 3, 2026, Plaintiffs attempted to file their proposed FAC, but the Clerk's Office rejected the attempted filing of the FAC, on grounds that defendant Corpus had already filed an Answer. (See Aug. 10, 2026 Decl. of Jason Hauer, ¶¶ 3-5; Exhibits 2-3.) The deadline for Plaintiffs to file their Opposition to the demurrer was Aug. 10, 2026.

Application/ruling.

With respect to Defendants County of San Mateo and Matthew Fox, Plaintiffs' Aug. 3, 2026 attempted filing of their FAC was timely under Code Civ. Proc. § 472(a). The fact that defendant Corpus had already filed an Answer did not terminate Plaintiff's right to amend with respect to the claims asserted against the County of San Mateo and Fox. (*Barton v. Khan* (2007) 157 Cal.App.4th 1216, 1220-21.) Therefore, the Clerk's Office should have filed the FAC, which would have rendered this demurrer moot. Because Plaintiffs timely exercised their right to amend as against the County of San Mateo and Fox, and because the Clerk's rejection of the FAC was based upon the erroneous conclusion that defendant Corpus' Answer terminated that right, the Court declines to determine the merits of the County of San Mateo's and Fox's demurrer to the original Complaint.

In their Reply brief, Plaintiffs cite to *Alden v. Hindin* (2003) 110 Cal.App.4th 1502, and argue that Plaintiffs had no right to amend their claims against Defendants County of San Mateo and Matthew Fox, once defendant Corpus had answered. Plaintiffs ignore that in *Barton*, the same court that decided *Alden* expressly disagreed with any suggestion in *Alden* that one defendant's filing of an answer extinguishes a plaintiff's right to amend with respect to other defendants, before the hearing on a demurrer. (*Barton v. Khan, supra*, 157 Cal.App.4th at 1221.)

Within five days of this Order, Plaintiffs shall file their proposed FAC with the Court, as a stand-alone document, and serve it on all parties. Defendants County of San Mateo and Matthew Fox shall then respond to the FAC, which will be Plaintiffs' operative pleading.

The proposed amendments concerning defendant Corpus are not decided by this Order.

The Court recognizes that Plaintiffs' proposed FAC also purports to assert amended claims against defendant Corpus, without leave of court. This Order is limited to Plaintiffs' right to amend *as against the County of San Mateo and Matthew Fox*, pursuant to Code Civ. Proc. § 472(a).

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND IN HER
OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant/Cross-Complainant Daniel Perea's Demurrer to Complaint for: (1) 4th Amendment Unreasonable Arrest; (2) Free-Speech Violations; (3) Free Association Violations; (4) Interference with Union Activities; (5) False Imprisonment

TENTATIVE RULING:

For the reasons stated below, Defendant Daniel Perea's demurrer, filed Jan. 28, 2026, which is directed to Plaintiffs Tapia et. al.'s original Complaint, filed June 13, 2025, is HEREBY TAKEN OFF CALENDAR AS MOOT. The Court finds that on Aug. 3, 2026, Plaintiffs timely attempted to file a First Amended Complaint ("FAC") against Defendant Daniel Perea, which should have been accepted for filing, and which would have rendered this demurrer moot.

Background.

On June 13, 2025, Plaintiffs filed their original Complaint. On Jan. 28, 2026, Defendant Daniel Perea filed a demurrer to the Complaint. The hearing date for the demurrer was set for Aug. 21, 2026. On May 22, 2026, defendant Corpus filed an Answer to the Complaint. On Aug. 3, 2026, Plaintiffs attempted to file their proposed FAC, but the Clerk's Office rejected the attempted filing of the FAC, on grounds that defendant Corpus had already filed an Answer. (See Aug. 10, 2026 Decl. of Jason Hauer, ¶¶ 3-5; Exhibits 2-3.) The deadline for Plaintiffs to file their Opposition to the demurrer was Aug. 10, 2026.

Application/ruling.

With respect to Defendant Daniel Perea, Plaintiffs' Aug. 3, 2026 attempted filing of their FAC was timely under Code Civ. Proc. § 472(a). The fact that defendant Corpus had already filed an Answer did not terminate Plaintiff's right to amend with respect to the claims asserted against the County of San Mateo and Fox. (*Barton v. Khan* (2007) 157 Cal.App.4th 1216, 1220-21.) Therefore, the Clerk's Office should have filed the FAC, which would have rendered this demurrer moot. Because Plaintiffs timely exercised their right to amend as against Perea, and because the Clerk's rejection of the FAC was based upon the erroneous conclusion that defendant Corpus' Answer terminated that right, the Court declines to determine the merits of Perea's demurrer to the original Complaint.

Within five days of this Order, Plaintiffs shall file their proposed FAC with the Court, as a stand-alone document, and serve it on all parties. Defendant Daniel Perea shall then respond to the FAC, which will be Plaintiffs' operative pleading.

The proposed amendments concerning defendant Corpus are not decided by this Order.

The Court recognizes that Plaintiffs' proposed FAC also purports to assert amended claims against defendant Corpus, without leave of court. This Order is limited to Plaintiffs' right to amend *as against Defendant Daniel Perea*, pursuant to Code Civ. Proc. § 472(a).

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-08159 TRACY STETZ BILLUPS VS. COUPA SOFTWARE INCORPORATED, A
DELAWARE CORPORATION

TRACY STETZ BILLUPS
COUPA SOFTWARE INCORPORATED, A DELAWARE
CORPORATION

JOHN E LATTIN
ANTHONY S. ORTIZ

Defendant's Demurrer to Plaintiff's Complaint for Damages

TENTATIVE RULING:

For clarification the Court notes Defendant Coupa Software Incorporated has provided the improper address for the hearing because Department 20 is no longer located in San Mateo as the notice states, but instead at the Northern Branch Courthouse, 1050 Mission Road, Courtroom L, South San Francisco, CA 94080. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant Coupa Software Incorporated's demurrer to the second, third, fourth, fifth, sixth and ninth causes of action in the complaint filed by Plaintiff Tracy Stetz Billups October 13, 2025 is SUSTAINED.

Defendant's concurrently filed motion to strike is DENIED as MOOT.

Defendant's late-filed reply brief due to counsel's calendaring error (Declaration of Anthony S. Ortiz iso reply, ¶¶3-5) was considered. Defense counsel is reminded of the Court's preference regarding reply brief courtesy copies, as noted on the Court's website. "Please anticipate a one week delay from eFiling of reply briefs to when they are accessible by the judge. To ensure the earliest review of any reply briefs please submit a courtesy copy to LawAndMotionReplyBriefs@sanmateocourt.org. Please make sure to enter the DEPARTMENT NUMBER and the CASE NUMBER on the subject line of your email."

Background

Plaintiff is a former employee of defendant. The Complaint raises 17 causes of action and avers that prior to her alleged pretextual termination she was subjected by her supervisors, managers, and other agents of defendants to sexual harassment, discrimination on the bases of sex/gender, age, religion, and marital status, and severe and intentional emotional distress. When plaintiff reported the harassment and discrimination, defendants failed to take action to end the harassment and discrimination and instead allegedly retaliated against plaintiff for lodging her complaints about unlawful conduct by terminating her employment.

Plaintiff also contends that defendants failed to properly classify her as a nonexempt employee, failed to pay her minimum wage overtime pay, failed to provide all meal and rest breaks or, alternatively, meal and rest break premium pay, failed to provide accurate wage statements and failed to reimburse her for all necessary business expenses that she incurred in defendants' behalf, all of which caused her significant harm and distress.

Defendant demurs to the second, third, fourth, fifth, sixth and ninth causes of action for insufficient factual basis under Code of Civil Procedure section 430.10, subdivision (e), and as fatally uncertain under subdivision Code of Civil Procedure section 430.10, subdivision (f). Additionally, defendant contends the ninth cause of action for intentional infliction of emotional distress ("IIED") is also precluded by the worker's compensation exemption.

Plaintiff opposes demurrer on three grounds. First, the demurrer challenges the evidentiary bases of the causes of action that are not suitable at the pleading stage. Next, the demurrer neglects to consider Government Code section 12923 in determining hostile work environment. Lastly, defendant's lead authority, *Miller v. Department of Corrections*, 36 Cal. 4th 446 (2005), belies their position because it establishes the precise theory of hostile work environment that paragraph 12 of the Complaint pleads: widespread sexual favoritism conveying to women that relationships with management are the expected and preferred path to advancement.

Meet and Confer

A party filing a demurrer "shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).)

Preliminarily, the Court notes the parties met and conferred both regarding the demurrer and motion to strike, as required under the rules of Civil Procedure, but were unable to reach a resolution. (Declaration of Anthony S. Ortiz iso Demurrer ¶ 3, Declaration of Anthony S. Ortiz iso MTS, ¶ 3.)

Legal Standard

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn v. Mirda*, (2007) 147 Cal.App.4th 740, 747.) Since a demurrer "admits the truth of all material factual allegations in the complaint," a plaintiff's ability to prove these allegations "does not concern the reviewing court... The plaintiffs need only plead facts showing that they may be entitled to some relief." (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 superseded by statute on other grounds [internal quotations omitted].) The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007)

42 Cal.4th 531, 550.) The trial court then has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (*Das v. Bank of America, N.A.* (2010) 186 Cal.App.4th 727, 734.)

A special demurrer for uncertainty, Code of Civil Procedure section 430.10, subdivision (f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

Discussion

The FEHA causes of action challenged by the demurrer raised in the complaint's second, third, fourth, fifth and sixth causes of action, rely heavily upon the allegations set forth in the complaint's fourteenth paragraph, excerpted here:

14. Bartolo, however, did not limit his harassment and discrimination of Plaintiff on the basis of sex/gender only. He also intentionally discriminated against Plaintiff because of her age, religion, and marital status. For example, Bartolo would repeatedly and intentionally make comments for years about her age and marital status, including that if she were laid off that she should just retire because she was too old to reinvent herself at another company and that she should retire because she was married and had a husband to support her. Bartolo also held a leadership meeting where he promoted his religious beliefs in a presentation that violated company policy and made Plaintiff and others feel that embracing Bartolo's religious views was necessary to being successful in their roles at COUPA.

(Compl. ¶ 14.)

Second Cause of Action – Sexual Harassment and Discrimination in Violation of FEHA.

“[A]n employee claiming harassment based upon a hostile work environment must demonstrate that the conduct complained of was severe enough or sufficiently pervasive to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees because of their sex” as evaluated in light of the totality of the circumstances. (*Miller v. Department of Corrections* (2005) 36 Cal.4th 446, 462.) Here, the Court finds the complaint does not raise sufficient facts demonstrating a hostile work environment as a result of harassment because, even assuming the truth of the singular sexual affair, the facts as alleged do not demonstrate Bartolo's sexual favoritism was sufficiently widespread so as to create a hostile environment. Moreover, the Court finds the complaint ambiguous as to whether the discrimination of female employees is alleged against Sanford, Bartolo, or both. For this reason the Court finds this cause of action to be fatally uncertain as well as factually insufficient and demurrer is SUSTAINED.

Third Cause of Action – Discrimination on the Basis of Religion in Violation of FEHA.

“The elements of a religious creed discrimination claim are that: the plaintiff had a bona fide religious belief; the employer was aware of that belief; and the belief conflicted with an employment requirement. (*Soldinger v. Northwest Airlines, Inc.* (1996) 51 Cal.App.4th 345, 370, 58 Cal.Rptr.2d 747.)” (*Friedman v. Southern Cal. Permanente Medical Group* (2002) 102 Cal.App.4th 39, 45, *as modified* (Sept. 24, 2002).)

Here, the complaint alleges “. Bartolo also held a leadership meeting where he promoted his religious beliefs in a presentation that violated company policy and made Plaintiff and others feel that embracing Bartolo’s religious views was necessary to being successful in their roles at COUPA.” (Complaint ¶ 14.) Defendant contends this allegation lacks a sufficient factual basis and the Court agrees: the complaint does not set forth plaintiff’s bona fide religious belief or set forth any facts supporting that her beliefs were in conflict with those allegedly espoused by Bartolo. Similarly, the Court also agrees the cause of action is fatally uncertain. Accordingly, demurrer is SUSTAINED as to the third cause of action.

Fourth Cause of Action – Discrimination on the Basis of Age in Violation of FEHA

“[T]o make out a prima facie case of age discrimination under FEHA, a plaintiff must present evidence that the plaintiff (1) is over the age of 40; (2) suffered an adverse employment action; (3) was performing satisfactorily at the time of the adverse action; and (4) suffered the adverse action under circumstances that give rise to an inference of unlawful discrimination, i.e., evidence that the plaintiff was replaced by someone significantly younger than the plaintiff. (*Hersant, supra*, 57 Cal.App.4th at pp. 1002–1003, 67 Cal.Rptr.2d 483.)” (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 321.)

Here, the only reference regarding plaintiff’s age appears (again) to be complaint paragraph fourteen that “if she were laid off that she should just retire because she was too old to reinvent herself at another company.” Plaintiff contends this statement expressly linked Plaintiff’s age to the prospect of her layoff because plaintiff was laid off after Bartolo’s statement despite having excellent reviews, raises and promotions while lesser performers were retained. The Complaint does not set forth the prima facie case however, because it alleges plaintiff was “fired under the pretext of layoffs”. (Compl. ¶ 20.) Though this paragraph alleges she was replaced, there is no factual allegation regarding the age, gender nor any factual information about her replacement. Thus the Court does not find a sufficient factual basis for this cause of action and demurrer is SUSTAINED.

Fifth Cause of Action – Discrimination on the Basis of Marital Status in Violation of FEHA

Marital status discrimination is prohibited by FEHA: “It is an unlawful employment practice ... [¶] [f]or an employer, because of ... marital status ... to bar or to discharge the person from employment.” (*Nakai v. Friendship House Assn. of American Indians, Inc.* (2017) 15 Cal.App.5th 32, 40 [quoting Gov. Code, § 12940, subd. (a)].) The only reference to marital status is part of a sentence in paragraph fourteen that if plaintiff were laid off “she should just retire

because she was married and had a husband to support her.” (Compl. ¶ 14.) The Court finds this cause of action to be wholly factually insufficient and fatally uncertain. Accordingly, demurrer is SUSTAINED.

Sixth Cause of Action – Failure to Prevent Sexual Harassment in Violation of FEHA

In pertinent part, Government Code section 12940 provides, “It is an unlawful employment practice ... : [¶] (a) [f]or an employer, because of ... sex ... to discriminate against the person ... [¶] ... [¶] [and] (j)(1) [f]or an employer ... , or any other person, because of ... sex ... to harass an employee... .” Section 12940, subdivision (k) states in part that “[i]t is an unlawful employment practice ... : [¶] ... [¶] ...For an employer ... to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” This code section “creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages. (Citation.) One of the elements of a harassment claim pursuant to section 12940, subdivision (j)(1) is that the harassment be sufficiently severe or pervasive so as to alter the conditions of employment and create an abusive working environment.” (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1312-1313.) Notably, “ ‘courts have required a finding of actual discrimination or harassment under FEHA before a plaintiff may prevail under section 12940, subdivision (k).’ ” (*Id.* at 1314.)

Because the Court sustained demurrer as to the second cause of action this cause necessarily fails under *Dickson*, *supra*. Accordingly, demurrer is SUSTAINED.

Ninth Cause of Action – IIED

“ ‘ “[T]o state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” ’ [Citation.] ‘ “Conduct, to be ‘ “outrageous” ’ must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” ’ [Citation.] In order to avoid a demurrer, the plaintiff must allege with ‘great[] specificity’ the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.]” (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832, 166 Cal.Rptr.3d 242 (*Vasquez*).)

(*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160–161.)

Paragraph 89 of the complaint alleges “Defendants engaged in a number of examples of extreme and outrageous conduct that are far beyond the bounds of acceptable behavior, including but not limited to the following, sexually harassing Plaintiff, creating a hostile work environment, and retaliating against Plaintiff. sexually harassing Plaintiff, creating a hostile work environment, and retaliating against Plaintiff.” The Court agrees with defendant that this is a “conclusory and

factually devoid manner” (MPA p. 10) and well below the required degree of specificity needed to demonstrate extreme and outrageous conduct and the requisite emotional distress. Accordingly, demurrer is SUSTAINED pursuant to Code of Civil Procedure section 430.10, subdivision (e) as factually insufficient.

Additionally, defendant argues that the ninth cause of action is barred by the exclusivity provisions of the Workers’ Compensation Act (Lab. Code, § 3600 et seq.). It is correct that “physical and emotional injuries sustained in the course of employment are preempted by the workers’ compensation scheme and generally will not support an independent cause of action. (*Cole v. Fair Oaks Fire Protection Dist.* (1987) 43 Cal.3d 148, 160, 233 Cal.Rptr. 308, 729 P.2d 743 (*Cole*).)” (*Yau v. Santa Margarita Ford, Inc.*, *supra*, 229 Cal.App.4th at 161.) The Court does not enter a ruling with respect to this alternate ground for demurrer having sustained demurrer for failure to state sufficient facts, but notes that the alleged emotional stress caused by a supervisor’s sexual harassment and misconduct towards employees are not typically injuries sustained in the “normal” course of employment.

Leave to Amend

“[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) The Court cannot say, as it must in order to deny leave to amend, that “amendment would be futile.” (*Nelson v. Tucker Ellis, LLP* (2020) 48 Cal.App.5th 827, 848 [internal citations and quotations removed].) Accordingly, leave to amend is GRANTED.

Any amended complaint must be filed within fourteen (14) days of entry of this Court’s Order. (Code Civ. Proc. § 472a, subd. (c).)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

25-CIV-08159 TRACY STETZ BILLUPS VS. COUPA SOFTWARE INCORPORATED, A
DELAWARE CORPORATION

TRACY STETZ BILLUPS
COUPA SOFTWARE INCORPORATED, A DELAWARE
CORPORATION

JOHN E LATTIN
ANTHONY S. ORTIZ

Defendant's Motion to Strike Portions of Plaintiff's Complaint

TENTATIVE RULING:

For clarification the Court notes Defendant Coupa Software Incorporated has provided the improper address for the hearing because Department 20 is no longer located in San Mateo as the notice states, but instead at the Northern Branch Courthouse, 1050 Mission Road, Courtroom L, South San Francisco, CA 94080. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant Coupa Software Incorporated's motion to strike paragraph 12, lines 26-27 from Plaintiff Tracy Stetz Billups's Complaint filed October 13, 2025, is DENIED AS MOOT because its demurrer was sustained in entirety.

Background

Plaintiff is a former employee of defendant. Plaintiff's Complaint raises 17 causes of action and avers that, prior to her alleged pretextual termination, she was subjected by her supervisors, managers, and other agents of defendants to sexual harassment, discrimination on the bases of sex/gender, age, religion, and marital status, and severe and intentional emotional distress. When plaintiff reported the harassment and discrimination, defendants failed to take action to end the harassment and discrimination and instead allegedly retaliated against plaintiff for lodging her complaints about unlawful conduct by terminating her employment.

Plaintiff also contends that defendants failed to properly classify her as a nonexempt employee, failed to pay her minimum wage overtime pay, failed to provide all meal and rest breaks or, alternatively, meal and rest break premium pay, failed to provide accurate wage statements and failed to reimburse her for all necessary business expenses that she incurred in defendants' behalf, all of which caused her significant harm and distress.

Concurrent to their demurrer defendant brings the instant motion to strike the allegation from plaintiff's complaint that plaintiff's supervisor Chris Bartolo "had a well-known affair with a female Sourcing Manager." (MTS p. 3, quoting Compl. ¶ 12, lines 26-27.) Defendant asserts said

information (paragraph 12, lines 26-27) injects immaterial, prejudicial, and scandalous matter into the pleadings and should be stricken pursuant to Code of Civil Procedure sections 435 and 436 because it serves no legitimate litigation purpose. Plaintiff opposes, contending that controlling case law—indeed, *Miller v. Department of Corrections* (2005) 36 Cal. 4th 446, the case relied upon by defendant—belies defendant’s position. Moreover, the information is essential to plaintiff’s sexual harassment (and other claims) because *Miller* confirms that a plaintiff need not have been personally propositioned to state such a claim. (*Id.* at 468.)

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) A court may, upon motion or in its discretion, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading” and “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436, subds. (a)-(b).) An “irrelevant matter” is an allegation that “is not essential to the statement of a claim or defense,” “is neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431.10, subds. (b)-(c).)

Discussion

The motion is DENIED AS MOOT because demurrer was sustained. The Court notes that the cited singular reference to an affair, in an action raising other allegations of misconduct on the basis of a variety of protected classes (age, gender, marital status), is not overly or unduly prejudicial.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

25-CIV-08818

CASAHOUSE LLC VS. JACQUELINE YEH, ET AL

CASAHOUSE LLC
JACQUELINE YEH

GLEN A VAN DYKE

Plaintiff's Motion to Compel Arbitration and Stay Litigation

TENTATIVE RULING:

Plaintiff CasaHouse LLC's Motion to Compel Arbitration and Stay Litigation is GRANTED
Code Civ. Proc. section 1281.2, as follows:

California law strongly favors arbitration, finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97 (*Armendariz*.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id.*, § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The moving party bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

California courts—applying both the FAA and Code Civ. Proc. § 1281.2 — have developed a well-settled three-step burden-shifting framework for motions to compel arbitration. The burden of persuasion always remains with the moving party to prove the existence of a valid arbitration agreement by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158; *Mar v. Perkins* (2024) 102 Cal.App.5th 201.

In the first step, the moving party must first produce prima facie evidence of a written agreement to arbitrate the controversy. (*Mar v. Perkins, supra*, 102 Cal.App.5th 201; *Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872.) This initial showing does not require a full evidentiary presentation; producing the agreement itself, or a copy of it, is typically sufficient to satisfy this threshold. (*Kostandian v. American Honda Motor Co., Inc., supra*, 120

Cal.App.5th 872.)

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, the opposing party then bears the burden of producing evidence to challenge the authenticity of the agreement in the second step of the analysis. (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572; *Kostandian v. American Honda Motor Co., Inc.*, *supra*, 120 Cal.App.5th 872; *Mar v. Perkins*, *supra*, 102 Cal.App.5th 201.) The opposing party may also raise defenses such as unconscionability at this stage. (*Mar v. Perkins*, *supra*, 102 Cal.App.5th 201.)

In the third step of the analysis, if the opposing party produces such evidence, the burden of production shifts back to the moving party, who must then establish with admissible evidence that a valid arbitration agreement exists between the parties. (*Id.*) Despite this shifting burden of production, the burden of proving the agreement by a preponderance of the evidence always remains with the moving party. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158; *Kostandian v. American Honda Motor Co., Inc.*, *supra*, 120 Cal.App.5th 872; *Mar v. Perkins*, *supra*, 102 Cal.App.5th 201.)

Here, the arbitration agreement under which Plaintiff seeks to compel arbitration is contained in the Purchase Contract for a residential property executed November 8, 2023 between Plaintiff CasaHouse LLC as the Buyer and Defendant Jacqueline Yeh as Seller. (Chojnacki Decl., ¶3, Exh. 1.) The arbitration clause states the following:

ARBITRATION OF DISPUTES: By initialing this Paragraph 31B below, Buyer and Seller agree to submit any disputes between them concerning or arising out of this Contract to binding arbitration if those disputes are not resolved by mediation. Arbitration is a dispute resolution process in which the Parties, either on their own or represented by their attorney, submit disputes to a neutral arbitrator. The arbitrator shall be a retired Superior Court judge or a licensed California attorney with at least five years' real estate experience. If the Parties cannot agree on an arbitrator, the Superior Court shall appoint the arbitrator. By agreeing to arbitration, the Parties give up their rights to a trial by judge or jury to appeal, except as provided by California law. Arbitration shall be conducted pursuant to Title 9 of the California Code of Civil Procedure including, but not limited to, the right of discovery under Section 1283.05. The decision of the arbitrator shall be regarded as final and binding on all Parties to the arbitration agreement. The real estate licensees are not required to arbitrate. The Parties are advised to consult with their own qualified California real estate attorney before agreeing to binding arbitration.

"NOTICE: BY INITIALING IN THE SPACE BELOW, YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW, YOU ARE

GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS SUCH RIGHTS ARE SPECIFICALLY INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE CALIFORNIA CODE OF CIVIL PROCEDURE. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY."

"WE HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES ARISING OUT OF THE MATTERS INCLUDED IN THIS 'ARBITRATION OF DISPUTES' PROVISION TO NEUTRAL RRBITRATION."

(*Id.*)

Also on November 8, 2023 Plaintiff CasaHouse LLC as the Buyer and Defendant Jacqueline Yeh as Seller signed a Completed New Construction – Purchase Addendum (the “Purchase Addendum.”) That document contains the following clause relating to arbitration:

MEDIATION AND ARBITRATION: Paragraphs 30 and 31 of the Agreement are modified as follows, unless otherwise agreed to a separate written agreement signed by Buyer and Seller: Buyer and Seller agree that the procedures set forth in Title 7 of Part 2 of Division 2 of the California Civil Code commencing with § 895 shall apply to any construction defect disputes relating to the Property prior to any mediation or arbitration that may otherwise be required by the Agreement.

(*Id.*, at ¶6, Exh. 3, ¶8.)

The Purchase Addendum further provides, under the heading “AGENT FOR NOTICE” that claims and requests for information relating to construction defect allegations are to be made to “Build Home Construction Company. Sam Mohsenzedegar...” (*Id.*, at ¶6, Exh. 3, ¶6.)

It is undisputed that Defendant Build Home Construction, Inc. (“Defendant Build Home”), with which Plaintiff seeks to compel arbitration, is not a party to the Purchase Contract or its arbitration agreement, or to the Purchase Addendum. Plaintiff argues that Defendant Build Home should be estopped from asserting that the Purchase Contract’s arbitration clause should be enforced against it because it has accepted the direct benefits from the Purchase Contract of the application of the Right to Repair Act which would not otherwise have applied. Defendant responds that it is not a builder as defined by the Right to Repair Act, is not a signatory to the contract, and agency, estoppel, and third-party beneficiary exceptions to enforcements against non-signatories do not apply.

The only issue that is contested is whether estoppel applies. As a general principle of contract law, only parties to an agreement are bound by it. (*Ballesteros v. Ford Motor Co.* (2025) 109 Cal. App. 5th 1196; *Goldman v. KPMG, LLP* (2009) 173 Cal. App. 4th 209.) Equitable estoppel acts as an exception to that general principle in the arbitration context in that a defendant

that is not a signatory to the contract containing the arbitration agreement can be compelled to arbitrate when it "knowingly seeks the benefits of the contract containing the arbitration clause." (*Crowley Mar. Corp. v. Bos. Old Colony Ins. Co.* (2008) 158 Cal. App. 4th 1061, 1070-1071, quoting *Zurich American Ins. Co. v. Watts Industries, Inc.* (2005) 417 F.3d 682, 688.)

Plaintiff argues that "Defendant Build Home, consistently for over six months, asserted and voluntarily accepted the "direct benefits" from the Purchase Contract of the application of the Right to Repair Act which would not otherwise apply," and that it therefore should be estopped from asserting that the arbitration agreement cannot be enforced against it. (MP&A at p. 7:16-19.) The parties' Purchase Addendum required Plaintiff to bring construction defect claims pursuant to Civil Code section 895 et seq., and provided that all claims and requests for information relating to construction defect allegations were to be made to Defendant Build Home. (Van Dyke Decl., ¶3.) The parties exchanged communications regarding Plaintiff's claims against the seller, Defendant Jacqueline Yeh, for violation of building standards. (*Id.*, at ¶¶4-12, Exhs. 1-9.) Defendant Build Home contends that it never received a direct benefit from the Purchase Addendum because it did not expect to receive compensation for any repairs and because it did not complete the repairs because Plaintiff refused the offers to repair.

However, Defendant Build Home knew that it was designated as the agent for notice regarding claims for construction defect allegations under the Purchase Addendum. It responded to communications regarding claims for violation of Civil Code 895 et seq., which applied pursuant to the terms of the Purchase Addendum, and elected to exercise rights under that statutory framework, beginning with an August 13, 2025 communication in which counsel indicated they had been retained by Defendant Build Home and, *inter alia*, that Defendant Build Home elected to inspect Plaintiff's residence relating to the alleged building standard violations Pursuant to Cal. Civ. Code § 916(a). (*Id.*, at ¶11, Exh. 8.) This knowing exercise of rights under the statutory framework provided by Civil Code 895 et seq. was exercised pursuant to the terms of the Purchase Addendum. After knowingly seeking the benefit of the contract containing the arbitration clause, Defendant Build Home is estopped from asserting that it is not bound by the arbitration clause.

The Motion is accordingly GRANTED. The parties are ordered to arbitration pursuant to the terms of the Purchase Contract. This action is STAYED pending resolution of arbitration. The Case Management Conference currently scheduled for November 16, 2026, is continued to November 1, 2027 at 9:00 a.m., still before the Civil Commissioner, and is for arbitration status.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8

26-CLJ-03355 MUNEERAH CRAWFORD VS. T MOBILE USA INC., ET AL

MUNEERAH CRAWFORD
T MOBILE USA INC.

PRO SE
JOSHUA L. RAYES

Plaintiff's Motion for Leave to File Second Amended Complaint to Add Cause of Action for Financial Elder Abuse

TENTATIVE RULING:

This matter is dropped from calendar. Plaintiff has dismissed the complaint.

9:00 AM

Line 9/UD Line 1

26-UDL-00603 ANA TUIFUA VS. TEVITA TUIFUA, ET AL

ANA TUIFUA
TEVITA TUIFUA

PRO SE
PRO SE

Defendants' Motion for Judgment on the Pleadings

TENTATIVE RULING:

This is an unlawful detainer action. Defendants Tevita Tuifua, Cherry Tuifua, Toakase Tuifua, and Ana Tuifua have moved for judgment on the pleadings against Plaintiff Ana Tuifua.¹

Defendants' motion for judgment on the pleadings is GRANTED, without leave to amend.

LEGAL STANDARD

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired; the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) When considering demurrers, courts “are required to construe the complaint liberally to determine whether a cause of action has been stated, given the assumed truth of the facts pleaded.” (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

“The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The court “may consider all material facts pleaded in the complaint and those arising by reasonable implication therefrom; it may not consider contentions, deductions or conclusions of fact or law. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220 (citing *Moore v. Conliffe* (1994) 7 Cal.4th 634, 638; *Montclair Parkowners Assn. v. City of Montclair* (1999) 76 Cal.App.4th 784, 790).)

ANALYSIS

1. Plaintiff May Not Represent the Toakase Tuifua Revocable Living Trust in this Action

¹ Defendants have clarified that Plaintiff Ana Tuifua and Defendant Ana Tuifua are related but different people.

Plaintiff brings this action in her capacity as a trustee of the Toakase Tuifua Revocable Living Trust. (Complaint, section 1.) Defendants argue that, as a non-attorney, Plaintiff is prohibited from representing the trust in this action. The Court agrees.

“No person shall practice law in California unless the person is an active member of the State Bar.” (Bus. & Prof. Code, § 6125.) This prohibition prohibits a non-attorney from representing third parties, which includes trustees representing trusts. “[A] trustee’s duties in connection with his or her office do not include the right to present argument pro se in courts of the state, because in this capacity the trustee would be representing the interests of others and would therefore be engaged in the unauthorized practice of law.” (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 548.)

Here, Plaintiff Ana Tuifua filed the Complaint as trustee of the Toakase Tuifua Revocable Living Trust. No attorney since appeared on behalf of Plaintiff. Accordingly, Plaintiff is prohibited from proceeding in this action without first retaining an attorney.

2. Plaintiff’s Notice to Quit Fails to Comply with Code Civ. Proc. § 1161(2)

Code Civ. Proc. Section 1161(2) governs the contents of a notice to pay rent or quit. The statute provides, in relevant part, that a notice to quit must state “the amount that is due, the name, telephone number, and address of the person to whom rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive payment.”

Here, Plaintiff’s 3-day notice to quit or pay rent states that payment may be made by mail or in person to Ana Tuifua and provides a phone number and address for Ms. Tuifua, but does not provide any information regarding the usual days and hours that Ms. Tuifua will be available to receive payment. (See Complaint [3-Day Notice or Pay Rent attached].)

California courts have consistently held that strict compliance with Section 1161 is required in unlawful detainer actions. (See, e.g., *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697 [“[B]ecause of the summary nature of an unlawful detainer action, a notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements.”]; *Culver Ctr. Partners E. #1, L.P. v. Baja Fresh Westlake Vill., Inc.* (2010) 185 Cal.App.4th 744, 749-50 [“the landlord must demonstrate strict compliance with the statutory notice requirements contained in section 1161 et seq” . . . “otherwise a landlord’s remedy is an ordinary suit for breach of contract with all the delays that remedy normally involves and without restitution of the demised property”].)

Under the strict compliance standard, Plaintiff’s notice to quit or pay rent is invalid on its face. The notice fails to provide the usual time days and hours during which payment in person may be accepted. This defect is clear on the face of the Complaint and is not curable. Thus, the Court finds this to be an adequate basis to grant this motion, notwithstanding the finding above that Plaintiff is prohibited from to representing the trust.

The Court notes that Defendants separately made arguments that the notice to quit was invalid based on East Palo Alto Rent Stabilization Board regulations and the East Palo Alto Municipal Code. However, Defendants have not attached a copy of the relevant regulations and code sections with any supporting declaration or request for judicial notice. In fact, Defendants have not even quoted or otherwise described the alleged requirements with which Plaintiff purportedly failed to comply. The Court declines to take judicial notice of those authorities *sua sponte*. Thus, those arguments were not considered here.

Accordingly, Defendants' motion for judgment on the pleadings is GRANTED, without leave to amend. As a result, this action is now dismissed, without prejudice.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order and the Court will dispense with the need for a formal Order after hearing.

10:00 AM

Line 10

26-CLJ-04775 BOUNCE AI, INC VS FOTOFILI NAMOA

BOUNCE AI, INC
FOTOFILI NAMOA

ROBERT SCOTT KENNARD
PRO SE

Defendant's Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Defendant Fotofili Namoa's Motion to Compel Arbitration, filed July 17, 2025, is DENIED.
(Code Civ. Proc. Sect. 1280 et. seq.)

This is a collection matter on a promissory note for a claimed debt of \$22,337.10. After service of the Summons and Complaint, Defendant filed the present Motion to Compel Arbitration.

Governing law.

Code Civ. Proc. § 1281.2, states, in part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action ... with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action ... includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. ...

...

If the court determines that there are other issues between the petitioner and the respondent which are not subject to arbitration and which are the subject of a pending action ... between the petitioner and the respondent and that a determination of such issues may make the arbitration unnecessary, the court may delay its order to arbitrate until the

determination of such other issues or until such earlier time as the court specifies.

If the court determines that a party to the arbitration is also a party to litigation in a pending court action ... with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action ...; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action ... pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action ...

The parties' burdens.

Where a party has filed a motion to compel arbitration, the trial court must determine in a summary proceeding whether an “agreement to arbitrate the controversy exists.” (Code Civ. Proc., §§ 1281.2, 1290.2; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412–413.) “Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (*Rosenthal*, at p. 413; accord, *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) The party opposing the motion bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236; *Ruiz v. Moss Bros. Auto Grp.* (2014) 232 Cal.App.4th 836, 842–43.) The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination. (*Engalla v. Permanente Medical Group, Inc.*, *supra*, at p. 972.)

“General principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Although public policy favors arbitration, that policy “does not extend to those who are not parties to an arbitration agreement.” (*Theresa D. v. MBK Senior Living LLC*, *supra*, 73 Cal.App.5th at 24; *Young v. Horizon W., Inc.* (2013) 220 Cal.App.4th 1122, 1128 [“Even the strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement or who have not authorized anyone to act for them in executing such an agreement.”])

California applies a three-step process under Code of Civil Procedure section 1281.2 to determine whether an arbitration agreement exists. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164–165 (*Gamboa*).) At the first step, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy and can meet its burden by attaching to the petition or motion a copy of the arbitration agreement purporting to bear the opposing party’s signature. (*Id.*, at p. 165.) If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then the opposing party bears the burden of producing evidence to challenge the agreement at the second step. (*Ibid.*, citing *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) If the opposing party meets

its burden of producing evidence, then the moving party must establish with admissible evidence a valid arbitration agreement between the parties in the third step. (*Ibid.*)

Defendant does not meet their initial burden of showing a valid arbitration agreement.

Defendant's motion and declaration, fails to attach a copy of any written agreement with an arbitration clause as signed by the parties. As Defendant has not met its initial burden, the motion fails at step one, and the Court is not required to proceed to steps two or three.

Therefore, the motion to compel arbitration is DENIED. Defendant is to file its responsive pleading to the Complaint within ten days of service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
